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Fresh war breaks out over looted Nazi art being displayed in Los Angeles as new lawsuits filed

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A decades-long battle over artwork stolen during the Holocaust is resurfacing in Los Angeles, where heirs of Jewish victims are seeking the return of works now held by prominent museums in Southern California and at Auschwitz.

Two lawsuits were recently filed following changes to California and federal law that strengthened the ability to pursue US-based claims involving artwork taken from Jewish families during World War II.

One of the cases, filed this week in Los Angeles Superior Court by the Jewish Federation of Greater Los Angeles and its board, renews a dispute with the Norton Simon Museum in Pasadena over "Adam and Eve," a pair of life-size oil-on-panel paintings created by Lucas Cranach the Elder in 1530.

Oil paintings "Adam and Eve," painted in 1530 by Lucas Cranach the Elder, on display in the Norton Simon Museum in Pasadena, Calif. Norton Simon Art Foundation via AP

A separate lawsuit was filed the same day in federal court in Los Angeles by the daughters of Dinah Gottliebova Babbitt, a Holocaust survivor and California-based animator who was imprisoned at Auschwitz.

Babbitt was forced to paint watercolors of fellow prisoners for Josef Mengele, the Nazi physician known as the "Angel of Death." Her daughters are now seeking the return of those works.

Neither lawsuit specifies the value of the artwork at the center of the disputes.

Representatives for the museums maintain that their institutions have legal title to the artwork and intend to continue displaying the pieces to the public.

The Norton Simon Museum pointed to a 2018 federal court decision that unanimously found the museum held proper title to the Cranach paintings. The US Supreme Court declined to take up the dispute in May 2019, leaving the lower court rulings intact.

According to the museum, the paintings originally belonged to the Russian noble Stroganov family before the Soviet Union put them up for sale at an illicit Berlin auction in 1931, where they were purchased by art dealer Jacques Goudstikker. Following a complicated ownership history, a descendant of the Stroganovs eventually sold the paintings to the museum, which later restored and preserved them.

According to the museum, the paintings originally belonged to the Russian noble Stroganov family before the Soviet Union put them up for sale at an illicit auction. Getty Images "The Temptation of St. Anthony" painting is part of an extensive collection of Old Master art that was stolen by the Nazis in Holland 60 years ago. ASSOCIATED PRESS

"For nearly 50 years, they have been on view at the Norton Simon Museum and will continue to be accessible to the public for years to come," the museum said in a statement.

The cases are part of a broader and often complicated effort to recover art looted by the Nazis. From 1933 to 1945, the Nazi regime seized more than 600,000 works of art across Europe from Jewish families, collectors and museums in what has been described as the largest art theft in history.

More than eight decades later, some of those works remain in major museums around the world. Their disputed ownership has fueled legal and ethical battles between Jewish families seeking the return of property taken during

the Holocaust and museums that maintain they legally acquired the works and have a responsibility to preserve and display them.

California lawmakers, including Gov. Gavin Newsom, have also sought to change how these disputes are handled in court. AP Photo/Jeff Chiu Assembly Bill 2867 requires California law to be applied in lawsuits brought by state residents or their heirs seeking the recovery of artwork taken during the Holocaust or other acts of persecution. AP

California lawmakers have also sought to change how those disputes are handled in court.

Assemblyman Jesse Gabriel (D-Woodland Hills) authored Assembly Bill 2867, which Gov. Gavin Newsom signed into law in September 2024. The legislation requires California law to be applied in lawsuits brought by state residents or their heirs seeking the recovery of artwork taken during the Holocaust or other acts of persecution.

Gabriel, who co-chairs the California Legislative Jewish Caucus, introduced the measure following a federal court ruling that allowed the state-owned Thyssen-Bornemisza National Museum in Madrid to retain a multimillion-dollar Impressionist painting by Camille Pissarro.

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